Broker 2024 Member Data License Agreement - No Third Party Vendor

Agreed
(February 28th, 2026)

MLS: Miami Association of Realtors Agreed February 28th, 2026 (Automatic)
BROKER: Christopher Lundstrom, Lundstrom & Company Agreed February 28th, 2026

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Terms: 2024 MIAMI AOR Data License Agreement

THIS IDX & VOW LICENSE AGREEMENT (the version of this “Agreement” updated as of May 14, 2024) is made and entered into by and between: the MIAMI ASSOCIATION OF REALTORS®, Inc. (hereinafter referred to as “MIAMI REALTORS®” or “MIAMI MLS” or “SEFMLS” or “Southeast Florida MLS”); the below-named real estate firm (the “Brokerage”); the below-named Designated REALTOR®/Broker, individually (collectively, the Brokerage and the Designated REALTOR®/Broker are referred to as the “Participant” in this Agreement and are jointly and severally liable for the obligations and responsibilities of the Participant in this Agreement); the below-named Technology Provider; and, if applicable, the below-named Agent, in their individual capacity, who is a member in good standing with MIAMI REALTORS®, whose real estate license is with the Brokerage, and who is requesting authorization to have a Website. Individually, MIAMI REALTORS®, Participant, Technology Provider, and Agent (if applicable) may be referred to as a “Party,” or collectively as the “Parties,” in this Agreement.

“PARTICIPANT”
Designated REALTOR®/Broker:
License Number:
Brokerage:
“TECHNOLOGY PROVIDER”
Technology Provider Company:
Technology Provider Website:

“AGENT”
Agent Name (if applicable):
License Number:
Types of Data Feeds:

- IDX
- IDX Plus
- VOW
- Broker Back Office
- Brokerage Only Data - PDAP

I. I. RECITALS

Participant wishes to obtain MIAMI MLS’ Licensed Content, as defined in Section II.E., and MIAMI REALTORS® wishes to provide the same, as outlined in this Agreement, for use only on Participant’s Website and no other purpose. Participant wishes to engage Technology Provider to operate Participant’s Website on behalf of Participant and subject to Participant’s supervision, accountability, and compliance with the MLS Rules, as defined in this Agreement, in addition to all applicable federal, state, and local ordinances, laws, and regulations, both as they exist now and as they may change in the future. Technology Provider will execute a separate agreement with Participant to operate Participant’s Website and only seeks to obtain access to the Licensed Content for such purpose. In exchange for good and valuable consideration, the sufficiency and receipt of which are hereby acknowledged by MIAMI REALTORS®, Participant, Technology Provider, and Agent (if applicable) agree as follows:

II. DEFINITIONS

For purposes of this Agreement, the following terms shall have the meanings set forth below.

A. Agent means an individual with a Florida real estate license whose license is with the Designated REALTOR®/Broker’s Brokerage, and who is a member in good standing with the MIAMI REALTORS® in accordance with the MIAMI REALTORS®’ Bylaws, which are available in their current form online at www.miamirealtors.com. Participant and Agent (if applicable) are responsible for staying informed of the latest version of MIAMI REALTORS®’ Bylaws.

B. Brokerage means the Designated REALTOR®/Broker’s real estate company or corporation, incorporated and authorized to do business in the State of Florida. Collectively, the Brokerage and the Designated REALTOR®/Broker shall be referred to as the “Participant” in this Agreement.

C. Data Feed means the data feed, via API on Trestle (Corelogic) or Bridge Interactive™, that allows for the display of Licensed Content on the Participant’s Website.

D. Designated REALTOR®/Broker means any REALTOR® who is a Designated REALTOR®/Broker, principal, partner, corporate officer, or branch office manager acting on behalf of a principal who participates in the MIAMI MLS and is a member in good standing with the MIAMI REALTORS® in accordance with the Bylaws. Collectively, the Designated REALTOR®/Broker and Brokerage shall be referred to as the “Participant.”

E. Licensed Content:

1. FOR AN IDX LICENSE AGREEMENT (IDX): Licensed Content for an IDX Data Feed means only active listing information provided by MIAMI MLS participants to MIAMI REALTORS®, which is a subset of the

MLS Data, aggregated and distributed by MIAMI REALTORS®. This also includes: (a) the roster information tied to those listings for the respective MIAMI MLS participants that provided the listings to the MIAMI MLS (name, license number, telephone number, email address, and website); and, (b) images, photographs, audio, sounds, video, graphics, user interfaces, visual interfaces, artwork, documents, drawings, renderings, blueprints, and any other files submitted by a MIAMI MLS participant to the MIAMI MLS as part of the MLS Data.

2. FOR AN IDX PLUS LICENSE AGREEMENT (IDX PLUS): Licensed Content, for an IDX PLUS Data Feed, means all active, active with contract, pending sale, coming soon, and sold listing information provided by MIAMI MLS participants to MIAMI REALTORS®, which is a subset of the MLS Data, aggregated and distributed by MIAMI REALTORS®, for the previous seven (7) years. This also includes: (a) the roster information tied to those listings for the respective MIAMI MLS participants that provided the listings to the MIAMI MLS (name, license number, telephone number, email address, and website); and, (b) images, photographs, audio, sounds, video, graphics, user interfaces, visual interfaces, artwork, documents, drawings, renderings, blueprints, and any other files submitted by a MIAMI MLS participant to the MIAMI MLS as part of the MLS Data.

3. FOR A VOW LICENSE AGREEMENT: Licensed Content, for a VOW (“Virtual Office Website”) Data Feed, means all listing data, including sold listing information, provided by MIAMI MLS participants to MIAMI REALTORS®, which is a subset of MLS Data, aggregated and distributed by MIAMI REALTORS®, for the previous seven (7) years. The “Licensing Rules and Regulations for VOW,” attached hereto and incorporated herein as Schedule “D” shall also apply to Technology Provider, Participant, and Agent (if applicable) when Technology Provider is providing Participant or Agent (if applicable) a VOW to display Licensed Content. This also includes: (a) the roster information tied to those listings for the respective MIAMI MLS participants that provided the listings to the MIAMI MLS (name, license number, telephone number, email address, and website); and, (b) images, photographs, audio, sounds, video, graphics, user interfaces, visual interfaces, artwork, documents, drawings, renderings, blueprints, and any other files submitted by a MIAMI MLS participant to the MIAMI MLS as part of the MLS Data. Schedule “D” also discloses what data must be visible and/or hidden from any Registrant(s), as defined in Schedule “D.”

4. FOR A BROKER BACK OFFICE FEED: Licensed Content, for a Broker Back Office Data Feed, means all active, active with contract, pending sale, coming soon, and sold listing information provided by MIAMI MLS participants to MIAMI REALTORS®, which is a subset of MLS Data, aggregated and distributed by MIAMI REALTORS® for the previous seven (7) years. This also includes: (a) the roster information tied to those listings for the respective MIAMI MLS participants that provided the listings to the MIAMI MLS (name, license number, telephone number, email address, and website); and, (b) images, photographs, audio, sounds, video, graphics, user interfaces, visual interfaces, artwork, documents, drawings, renderings, blueprints, and any other files submitted by a MIAMI MLS participant to the MIAMI MLS as part of the MLS Data.

5. FOR A BROKERAGE ONLY DATA – PDAP FEED: Licensed Content, for a Brokerage Only Data – PDAP Feed, means all active, active with contract, pending sale, coming soon, and sold listing information provided by only the Brokerage’s MIAMI MLS participants to MIAMI REALTORS®, which is a subset of MLS Data, aggregated and distributed by MIAMI REALTORS® for the previous seven (7) years. This also includes: (a) the roster information tied to those listings for the respective MIAMI MLS participants that provided the listings to the MIAMI MLS (name, license number, telephone number, email address, and website); and, (b) images, photographs, audio, sounds, video, graphics, user interfaces, visual interfaces, artwork, documents, drawings, renderings, blueprints, and any other files submitted by a MIAMI MLS participant to the MIAMI MLS as part of the MLS Data.

6. Exclusions. Licensed Content does not include: (a) any listing for which the seller has withheld permission to have the listed property displayed on the Internet; (b) any MLS Data for which MIAMI MLS has actual notice that it has insufficient rights to include it in the Licensed Content; or, (c) attachments to listings that are not as described herein.

F. Rules refer to the MIAMI REALTORS®' then-current: (a) MLS Rules and Regulations ("MLS Rules"); (b) the access and technology requirements described in this Agreement; (c) the "Licensing Rules and Regulations for Technology Provider" in Schedule "A"; (d) the "Additional MLS Rules" in Schedule "C"; (e) the "Licensing Rules and Regulations for VOW" in Schedule "D"; (f) any operating policies relating to the Licensed Content; (g) DMCA Policy (https://www.miamirealtors.com/about-miami/disclaimer/); (h) Antitrust Policy (www.miamirealtors.com/antitrust); (i) NATIONAL ASSOCIATION OF REALTORS® Handbook on Multiple Listing Policy, Policy Statement 7.58 ("Advertising (Print and Electronic), Section 1: Internet Data Exchange (IDX) Policy) (https://www.nar.realtor/handbook-on-multiple-listing-policy/advertising-print-and-electronic-section-1-internet-data-exchange-idx-policy-policy-statement-7-58); and, (j) any other materials promulgated by MIAMI REALTORS® related to the use of Licensed Content or MLS System, as each of (a)-(j) may be amended from time to time with or without advance notice. MIAMI REALTORS®' MLS Rules, including but not limited to the rules applicable to internet display of Licensed Content, as they exist at the time of this Agreement, and any amendments thereto, are posted online at www.miamirealtors.com/mls. In the event of any inconsistencies amongst the Rules and the terms and conditions of this Agreement, the order of control is the MLS Rules, this Agreement, and then other Rules, unless expressly prioritized otherwise.

G. MLS Data means the data content, regardless of the format, entered into or uploaded to the MLS System by MIAMI MLS participants, in addition to the roster information associated with those listings for the respective MIAMI MLS participants that provided the listings to the MIAMI MLS (name, license number, telephone number, email address, and website).

H. MLS Server means the computer server or servers, cloud-based or otherwise, including both hardware and software, maintained by the Association and/or its third-party providers which contains the Licensed Content and provides the means for Technology Provider to access via API the Licensed Content.

I. MLS System means MIAMI MLS' computer system by which MIAMI MLS participants access the Licensed Content and other products and services of MIAMI MLS.

J. Technology Provider means an entity or person designated by a Participant to operate a Website on behalf of the Participant, subject to the Participant's supervision, accountability, and compliance with the Rules, including but not limited to the "Licensing Rules and Regulations for Technology Provider," which is attached hereto and incorporated herein as Schedule "A." For purposes of this Agreement, the Technology Provider is the company or individual(s) whose name and contact information appear in the signature block of this Agreement in the section designated "TECHNOLOGY PROVIDER." Additionally, any person or entity that creates and makes available, in any fashion, to any other person or entity, a Website, will be considered a Technology Provider.

K. Virtual Office Website or VOW refers to a MIAMI MLS participant's Website, and for purposes of this Agreement, specifically refers to the Designated REALTOR®/Broker, through which the Designated REALTOR®/Broker provides real estate brokerage services to consumers with whom they have first established a broker-consumer relationship (as defined by state law), where the consumer has the opportunity to search Licensed Content, subject to the Designated REALTOR®/Broker's oversight, supervision, and accountability. The "Licensing Rules and Regulations for VOW," attached hereto and

incorporated herein as Schedule “D,” shall also apply to Technology Provider, Participant, and Agent (if applicable) when Technology Provider is providing Participant or Agent (if applicable) a VOW to display Licensed Content.

L. Website(s), whether used in the singular or plural, refers to an Internet website and/or mobile application under Participant’s control, through which the Participant provides real estate brokerage services to consumers, and where the Participant and Agent (if applicable) will utilize the Data Feed to display and deliver Licensed Content via IDX, IDX PLUS, Broker Back Office Feed, Brokerage Only Data – PDAP, or VOW in connection with Participant’s and Agent’s (if applicable) legitimate real estate business purposes. As used in this Agreement, “control” means that Participant must have the ability to add, delete, modify, and update information as required by this Agreement. All display of Licensed Content must also be under the actual and apparent control of the Participant and must be presented to the public as being the Participant’s display. Actual control requires that the Participant has developed the display, or caused the display to be developed for the Participant pursuant to an agreement giving the Participant authority to determine what listings will be displayed, and how those listings will be displayed. Apparent control requires that a reasonable consumer receiving the Participant’s display will understand that the display is the Participant’s, and that the display is controlled by the Participant. Factors evidencing control include, but are not limited to, clear, conspicuous, written, or verbal identification of the name of the brokerage firm under which the Participant operates. Any display of Licensed Content must be controlled by the Participant, including the ability to comply with this Agreement and the Rules.

III. LICENSE TO TECHNOLOGY PROVIDER

A. MIAMI REALTORS®’ License to Technology Provider. During the Term of and subject to the terms and conditions of this fully executed Agreement between the Parties, MIAMI REALTORS® grants to Technology Provider a revocable, non-exclusive, non-sublicensable, and non-transferable license to receive from MIAMI REALTORS® an electronic Data Feed of the above-selected Licensed Content for use solely and exclusively in connection with the display of Licensed Content on Participant’s Website. All other uses are strictly prohibited.

B. Limitations on License to Technology Provider. Access to and use of the Licensed Content is provided to the Technology Provider for use only as expressly set forth in this Agreement and Technology Provider shall not use the Licensed Content, in whole or in part, for any other use or purpose. Except as expressly set forth in this Agreement, Technology Provider agrees that it shall not, and shall not facilitate, cause, or allow anyone else (including, without limitation, any parent company, subsidiary, shareholder, corporate partner, affiliate, assignee, or other unauthorized third-party), to do any of the following:

1. Use, display, access, distribute, transfer, modify, alter, copy, reproduce, scrape, disassemble, decompile, reverse engineer, or create derivatives or derivative work of the Licensed Content (in whole or in part), MLS System, or MLS Server;

2. Use the Licensed Content in any other product, service, or offering, regardless of whether it is a competing product or service, without MLS’s prior written consent;

3. Use the MLS roster information in the MLS Data and/or Licensed Content, including without limitation MIAMI REALTORS®’ Participant names, addresses, real estate license numbers, telephone numbers, and/or email for any purposes, including recruiting and marketing;

4. Feed license Licensed Content, directly or indirectly, to any generative artificial intelligence model (“AI”), including but not limited to image recognition technology, industrial robotics, voice control assistance technology, speech-to-text conversion programs, language translation programs, smart watches, logical AI programs, and/or chatbots, for any purpose, including but not limited to machine processing, machine learning, machine perception, machine control, training, harvesting, or incorporating the same into any third-party products and services;

5. Use the Licensed Content and/or MLS Data to operate a multiple listing service, whether through the Internet or otherwise, or to develop a business in competition with MIAMI REALTORS®, or to provide a service that offers cooperation and compensation between real estate professionals;

6. Use the Licensed Content, MLS System, and/or MLS Data to directly or indirectly establish or maintain a platform of offers of compensation from multiple brokers or other buyer representatives;

7. Use the Licensed Content, MLS System, and/or MLS Data to create, facilitate, or support any non-MLS mechanism (including by providing Licensed Content, which includes but may not be limited to listing information, to an internet aggregator’s website for such purpose) for Authorized Users and/or sellers to make offers of compensation to buyer brokers or other buyer representatives;

8. Use the Licensed Content, MLS System, and/or MLS Data to create, facilitate, or enable the ability to filter out or restrict listings that are communicated to customers or clients based on the existence or level of compensation offered to a cooperating broker, if any, the name of a brokerage or agent;

9. Download, distribute, export, deliver, or transmit any of the Licensed Content, including to any computer or other electronic device, except Participant’s Website as defined and permitted under this Agreement;

10. Sublicense, sell, lease, assign, distribute, grant access to, or otherwise transfer all or part of the Licensed Content, or access thereto, to any third-party;

11. Allow unpaid access to Licensed Content by individuals other than Agent (if applicable) with the Designated REALTOR®/Broker’s office, regardless of whether they are members of MIAMI REALTORS® or are MIAMI MLS participants;

12. Transmit any information or data through the Website that infringes upon or misappropriates the intellectual property or privacy rights of the MIAMI REALTORS®, other MIAMI MLS participants, or members of the public;

13. Alter, remove or obscure any patent, trademark or copyright notice in the Licensed Content;

14. Bypass or breach any security device or protection used for or contained in the MLS System;

15. Use the Licensed Content for purposes of benchmarking or competitive analysis;

16. Interfere with, circumvent, manipulate, overload, impair or disrupt the operation, or the functionality of the MLS System or Licensed Content;

17. Use the Licensed Content in a scope or manner that may adversely impact the availability, stability or responsiveness of the MLS System;

18. Use robots, crawlers, scrapers, and similar applications to scrape, harvest, collect, or compile content from or through the MLS Data, Licensed Content, or MLS System;

19. Use the MLS System, Licensed Content, or MLS Data in any other manner that violates the Agreement or any law, rule, or policy, as determined by MLS in its sole discretion; and/or,

20. Use the Licensed Content, MLS System, or MLS Data for any purpose not authorized in this Agreement.

C. Technology Provider's Obligations. Technology Provider agrees to take all reasonable steps necessary to protect the Licensed Content from unauthorized access, distribution, copying or, use. If Technology Provider becomes aware of or suspects unauthorized access, distribution, copying, or use of the Licensed Content, it shall immediately, within twenty-four (24) hours of such discovery, notify MIAMI REALTORS®, in writing, of the same in addition to the Technology Provider's plan to rectify the unauthorized access, distribution, copying, or use of the Licensed Content, which shall be made at Technology Provider's sole expense.

D. License Fees and Payment; Expenses. In consideration for the license MIAMI REALTORS® is granting to Technology Provider under this Agreement, Participant and/or Agent (if applicable) agrees to pay the license fees and other fees described on the attached Schedule "B" to this Agreement (the "Fees"). The Fees shall be payable as provided in Schedule "B." Technology Provider may pay the Fees on behalf of Participant or Agent (if applicable); however, if Technology Provider fails to pay any such amounts when due, Participant and Agent (if applicable) shall be liable to MIAMI REALTORS® for such amounts until paid. Participant and Agent (if applicable) agree that MIAMI REALTORS® may assess any unpaid Fees and other amounts due and owing from Participant or Agent (if applicable) under this Agreement to Participant's account with MIAMI REALTORS®, which Participant and Agent (if applicable) understand and agree must be paid before Participant and Agent (if applicable) may pay their annual dues in order to remain members in good standing with MIAMI REALTORS®. Participant and Agent (if applicable) agree to pay all costs of collection of all unpaid amounts owing to MIAMI REALTORS® under this Agreement, including interest, costs, and reasonable attorneys' fees. Participant and Agent (if applicable) shall be responsible for their own expenses and costs under this Agreement or in the enforcement of this Agreement, including but not limited to attorneys' fees; and, MIAMI REALTORS® shall have no obligation to reimburse Participant or Agent (if applicable) for any expenses or costs incurred by Participant and/or Agent (if applicable) in the exercise of Participant's or Agent's (if applicable) rights or the performance of Participant's or Agent's (if applicable) duties under this Agreement.

E. Trestle (Corelogic) or Bridge Interactive™ Addendum. As a condition of this Agreement, and before any Data Feed is activated, Technology Provider shall also execute a separate written agreement with Trestle (Corelogic) and/or Bridge Interactive™. Technology Provider is responsible for all fees under the separate written agreement with Trestle (Corelogic) and/or Bridge Interactive™ to use their respective services; this includes, but is not limited to, setup fees/costs, monthly fees, and charges.

F. Reservation of Rights. MIAMI REALTORS® reserves all rights not expressly granted to Technology Provider, Participant, and Agent (if applicable) in this Agreement. Except for the limited rights and licenses expressly granted under this Agreement, nothing in this Agreement grants, by implication, waiver, estoppel, or otherwise, to Technology Provider, Participant, and/or Agent (if applicable) or any third party any intellectual property rights or other right, title, or interest in or to the Licensed Content, MLS Data, MLS System, and/or MLS Server.

G. THE LICENSE MIAMI REALTORS® IS GRANTING TO TECHNOLOGY PROVIDER UNDER THIS AGREEMENT, INCLUDING ACCESS AND DISPLAY OF THE LICENSED CONTENT, IS PROVIDED “AS IS,” AND, EXCEPT FOR THE SPECIFIC OBLIGATIONS SET FORTH IN THIS AGREEMENT, MIAMI REALTORS® DISCLAIMS ANY AND ALL WARRANTIES WHETHER EXPRESS, IMPLIED, OR STATUTORY, INCLUDING, WITHOUT LIMITATION, ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, NON-INFRINGEMENT, AND ALL WARRANTIES ARISING FROM COURSE OF DEAL AND USAGE OR TRADE PRACTICE. MIAMI REALTORS® MAKES NO WARRANTY OF ANY KIND THAT THE LICENSED CONTENT, OR ANY PRODUCTS OR RESULTS OF THE USE THEREOF, WILL MEET TECHNOLOGY PROVIDER, PARTICIPANT, AND/OR AGENT’S (IF APPLICABLE), OR ANY OTHER PERSON OR ENTITY’S, REQUIREMENTS, ACHIEVE ANY INTENDED RESULT, BE COMPATIBLE OR WORK WITH ANY PLATFORM, SYSTEM, OR OTHER SERVICES, BE ACCURATE, COMPLETE, FREE FROM HARMFUL CODE, OR ERROR-FREE. PARTICIPANT, TECHNOLOGY PROVIDER, AND AGENT (IF APPLICABLE) UNDERSTAND THAT THE LICENSED CONTENT DOES NOT INCLUDE ALL BROWARD COUNTY MLS DATA. MIAMI REALTORS® DOES NOT MAKE ANY WARRANTIES CONCERNING THE SPEED OF ACCESS TO THE MLS SYSTEM VIA THE INTERNET OR OTHER COMMUNICATION LINES OVER WHICH MIAMI REALTORS® HAS NO DIRECT OR IMMEDIATE CONTROL.

IV. COMPLIANCE

A. Rules. Participant, Technology Provider, and Agent (if applicable) hereby acknowledge that they have received the Rules, as defined in Section II herein. Participant, Technology Provider, and Agent (if applicable) have read, understood, agree with, and agree to be bound by this Agreement and the Rules, both as they exist at the time of executing this Agreement and as they may change in the future, with or without notice. Technology Provider, Participant, and Agent (if applicable) agree that MIAMI REALTORS® may modify the Rules at any time and in its sole discretion. Technology Provider, Participant, and Agent (if applicable) agree that it is their sole responsibility to monitor the MIAMI REALTORS®’ website where all amendments to the Rules and Regulations are posted (www.miamirealtors.com), and amendments to the Rules and Regulations are effective as soon as they are posted.

B. Technology Provider’s Means of Accessing the Licensed Content. Access by Technology Provider to the Licensed Content shall be exclusively by the means, including the format and method of delivery, designated by MIAMI REALTORS®. MIAMI REALTORS® may, in its sole discretion and upon thirty (30) days prior written notice to Technology Provider, change the means and nature of accessing the Licensed Content.

C. Technology Provider’s Authorization to Access the Licensed Content. Technology Provider acknowledges, understands, and agrees that: (1) Technology Provider has no independent participation rights in MIAMI REALTORS® by virtue of this license; (2) Technology Provider shall not use Licensed Content except in connection with operation of the Participant’s Website subject to the terms and conditions of this Agreement; and, (3) access by Technology Provider to Licensed Content is derivative of the rights of Participant.

M. Participant’s and Agent’s (if applicable) Authorization to Access the Licensed Content. Subject to the terms and conditions of this Agreement, Participant has the ability to authorize limited electronic display and delivery of the Licensed Content via the Website(s) under their control. As used in this Agreement, “control” means that Participant must have the ability to add, delete, modify, and update information as required by this Agreement. All display of Licensed Content must also be under the actual and apparent control of the Participant and must be presented to the public as being the Participant’s display. Actual control requires that the Participant has developed the display, or caused the display to be developed for the Participant pursuant to an agreement giving the Participant

authority to determine what listings will be displayed, and how those listings will be displayed. Apparent control requires that a reasonable consumer receiving the Participant's display will understand that the display is the Participant's, and that the display is controlled by the Participant. Factors evidencing control include, but are not limited to, clear, conspicuous, written, or verbal identification of the name of the brokerage firm under which the Participant operates. Any display of Licensed Content must be controlled by the Participant, including the ability to comply with this Agreement and the Rules.

D. Changes to MLS's Server and System. MIAMI REALTORS® shall not be obligated to make any changes to the MLS Server or MLS System, including any software running on the MLS Server or MLS System, the configuration, applicable protocols, or any other aspect of MLS Server or MLS System for any reason. Participant, Technology Provider, and Agent (if applicable) acknowledge that access to the Licensed Content, may from time-to-time be unavailable to Technology Provider, whether because of technical failures or interruptions, intentional downtime for service or changes to the MLS Server or MLS System, or otherwise. Participant, Technology Provider, and Agent (if applicable) agree that any modification of the MLS Server or MLS System, any interruption or unavailability of access to the MLS Server or MLS System, or access to or use of the Licensed Content shall not constitute a default under this Agreement. The MLS shall have no liability of any nature to Participant, Technology Provider, or Agent (if applicable) for, and Participant, Technology Provider, and Agent (if applicable) waive all claims arising out of, any such modifications, interruptions, unavailability, and/or failure of access.

E. No contact with MIAMI MLS participants. Technology Provider, Participant, Provider, and Agent (if applicable) may not utilize the MLS Data or Licensed Content in any manner to initiate contact with MIAMI MLS participants or members of the MIAMI REALTORS®, individually or collectively, for any purpose, including but not limited to marketing and/or recruiting purposes.

F. Additional Technology Provider Requirements for VOW. The "Licensing Rules and Regulations for VOW," attached hereto and incorporated herein as Schedule "D" shall also apply to Technology Provider, Participant, and Agent (if applicable) when Technology Provider is providing Participant or Agent (if applicable) a VOW to display Licensed Content.

V. OWNERSHIP

A. Ownership of Intellectual Property. Technology Provider, Participant, and Agent (if applicable) acknowledge and agree that the Licensed Content is proprietary, original works of authorship of MIAMI REALTORS®, that it may consist of information for which MIAMI REALTORS® has sufficient rights to grant this license, and that, in addition to the MLS Data, is protected under United States copyright law. Technology Provider only has a non-exclusive, non-sublicensable, and non-transferable license to the Licensed Content; not the MLS Data. Technology Provider, Participant, and Agent (if applicable) further acknowledge and agree that all right, title, and interest in and to the Licensed Content and any modifications, enhancements, or derivative works of the Licensed Content and MLS Data, are and shall remain with MIAMI REALTORS®. This Agreement does not convey or grant to Technology Provider, Participant, or Agent (if applicable) an interest in or to the Licensed Content or MLS Data, but only a limited right to access and display the Licensed Content, revocable in accordance with the terms of this Agreement. Technology Provider, Participant, and Agent (if applicable) agree that they will not challenge or take any action inconsistent with MIAMI REALTORS®' ownership of or rights to the Licensed Content as described herein.

B. Trademark License to Technology Provider. MIAMI REALTORS® grants to Technology Provider a limited, non-exclusive, revocable license to use MIAMI REALTORS® trademark(s) for the sole purpose

of identifying MIAMI REALTORS® as the source of the Licensed Content ("Trademark"). Technology Provider agrees that it shall not use the Trademark, or any marks that are confusingly similar, assert any right, license, or interest with respect to any trademarks of MIAMI REALTORS®, or represent or suggest any affiliation between MIAMI REALTORS® and Technology Provider. Technology Provider agrees that it will not file any applications or assert any rights to the Trademark in the United States, the State of Florida, or any other country, state, or territory. MIAMI REALTORS® may subsequently grant similar rights to Technology Provider to use other trademarks of MIAMI REALTORS®, and Technology Provider's use thereof shall be subject to the provision of this paragraph as if they had been included in this Agreement.

C. Proprietary and Other Notices. Technology Provider agrees that it will include and not alter or remove any trademark, copyright, other notices, or any disclaimers located or used on or in connection with the Licensed Content. Technology Provider agrees to provide notice to any person with access to the display of the Licensed Content that the source of the Licensed Content is MIAMI REALTORS® by including the exact language in Schedule "A" on all Website(s).

D. Feedback. If Technology Provider, Participant, Agent (if applicable) or any of their employees, agents, or contractors sends or transmits any communications or materials to MIAMI REALTORS® by mail, email, telephone, or otherwise, suggesting or recommending changes to the MLS System, MLS Server, MLS Data, or Licensed Content, including without limitation, new features or functionality relating thereto, or any comments, questions, suggestions, or the like ("Feedback"), MIAMI REALTORS® is free to use such Feedback irrespective of any other obligation or limitation between Technology Provider, Participant, Agent (if applicable), and/or MIAMI REALTORS® governing such Feedback. Technology Provider, Participant, and Agent (if applicable) hereby assign to MIAMI REALTORS®, on their behalf and on behalf of their respective employees and contractors, all right, title, and interest in the Feedback, and MIAMI REALTORS® is free to use, without any attribution or compensation to any party, any ideas, know-how, concepts, techniques, or other intellectual property rights contained in the Feedback, for any purpose whatsoever, although MIAMI REALTORS® is not required to use any Feedback and any such Feedback does not create any contractual obligations.

VI. TERM AND TERMINATION

A. Term. The Initial Term of this Agreement shall commence on the "Effective Date," which is the date when Technology Provider, Participant, Agent (if applicable), and MIAMI REALTORS® have all executed this Agreement, and shall end on December 31 of that same year. If the Agreement is not terminated in accordance with Section VI.B., then this Agreement shall automatically renew after the Initial Term for one (1) year Successive Term(s) from January 1 – December 31 of each respective year. Collectively, the Initial Term and any Successive Term(s) shall be referred to as the Term. The terms and conditions of the Successive Term(s) will all remain the same with the exception of the terms and condition regarding Fees, which MIAMI REALTORS® reserves the sole right to adjust each calendar year.

B. Termination. MIAMI REALTORS® may, by delivery of written notice to Participant, Technology Provider, and Agent (if applicable), terminate this Agreement effective immediately (which, for purposes of this Agreement, the Parties understand and agree that "immediately" means within one (1) business day) upon the occurrence of any of the following events:

1. If Technology Provider gives MIAMI REALTORS® and Participant written notice of the termination;

2. If Participant written notice to MIAMI REALTORS® that it no longer intends to display the Licensed Content on their Website;

3. If Technology Provider is no longer designated to provide Technology Provider's services to Participant;

4. If Designated REALTOR®/Broker or Agent (if applicable) ceases to remain a member in good standing with MIAMI REALTORS® in accordance with the Bylaws;

5. If Designated REALTOR®/Broker or Agent's (if applicable) access to the MIAMI MLS is terminated, suspended, or discontinued for any reason;

6. Technology Provider accesses or downloads Licensed Content in a manner not authorized for Participant that hinders the ability of Participant to download data;

7. If, in MIAMI REALTORS®' sole discretion, Participant, Technology Provider, and/or Agent (if applicable) has violated or is violating any of the Rules, as defined in Section II.F. of this Agreement;

8. If, in MIAMI REALTORS®' sole discretion, Participant, Technology Provider, and/or Agent (if applicable) has violated or is violating any of their respective responsibilities, warranties, or obligations in this Agreement;

9. If, within ten (10) calendar days of receiving the bill for Successive Term(s), Participant or Technology Provider provides written notice to MIAMI REALTORS® to terminate the Agreement; or,

10. Participant or Technology Provider fails to make required payments to MIAMI REALTORS®.

C. Effect of Termination. Upon termination of this Agreement: (1) MIAMI REALTORS® shall disable access to the Licensed Content; (2) MIAMI REALTORS® shall suspend or cut off the Data Feed; (3) the license to Technology Provider shall immediately cease; and, (4) Technology Provider shall remove and destroy any copies of the Licensed Content in its possession (including backups), and will provide written confirmation to MIAMI REALTORS® that this was completed within ten (10) days of the termination of the Agreement.

D. Suspension; Effect of Suspension. In MIAMI REALTORS®' sole and absolute discretion, it may suspend the Data Feed of Participant, Technology Provider, and/or Agent (if applicable), in lieu of terminating the same, while the Participant, Technology Provider, and/or Agent (if applicable) cures any material or immaterial breach of this Agreement. Upon suspension of this Agreement, (1) MIAMI REALTORS® shall provide written notice to Participant, Technology Provider, and/or Agent; and, (2) MIAMI REALTORS® shall suspend or cut off the Data Feed indefinitely until Participant, Technology Provider, and/or Agent remedies any noncompliance with this Agreement, which shall be determined in MIAMI REALTORS® sole and absolute discretion.

E. No Refunds. Failure to properly terminate this Agreement does not alleviate the Technology Provider, Participant, and/or Agent's (if applicable) liability for Fees under this Agreement. No Fees, portion of the Fees, or other fees payable by Participant, Technology Provider, or any individuals or entities acting at their direction under this Agreement, will be refunded to Participant or Technology Provider, or any individual or entities acting at their direction, upon termination or suspension of this Agreement for any reason. Participant, Technology Provider, and/or any individuals or entities acting at their direction for payment, agree that the Fees are valid charges, if made to a credit card, and agree that any dispute to a credit card company for the Fees will be made in bad faith.

VII. WARRANTIES, INDEMNIFICATION, AND LIMITATION OF LIABILITY

A. Mutual Representations and Warranties. Each Party represents and warrants as follows: (1) this Agreement, when executed by such Party, will be valid, binding and enforceable with respect to such Party and its successors in accordance with its terms; and, (2) the execution of this Agreement and/or the performance of such Party's obligations under this Agreement will not constitute a default, or an event which with the passage of time, the giving of notice, or both, would constitute a default, under any other agreement by which such Party is bound.

B. Technology Provider's Representations and Warranties.

1. Technology Provider warrants that the Website shall at all times comply with all applicable federal, state, and local fair housing and disability laws, including but not limited to the Fair Housing Act, the Florida Fair Housing Act, and the Americans with Disabilities Act. Technology Provider further warrants that the Website, at all times, shall be accessible to individuals with disabilities.

2. Technology Provider warrants that the Website shall include Digital Millennium Copyright Act ("DMCA") disclosures, reporting and takedown procedures, and the name, address, email, and telephone number of the designated agent with the U.S. Patent and Trademark Office ("USPTO"). The Designated REALTOR®/Broker and Agent (if applicable) are responsible for providing the name, address, email, and telephone number of the designated agent with the USPTO to the Technology Provider. If Technology Provider receives a takedown request pursuant to those procedures, then within twenty-four (24) hours of receipt, Technology Provider must notify MIAMI REALTORS® in writing by forwarding a complete copy of the request to legal@miamire.com.

3. Technology Provider represents and warrants that it does, and will at all times, comply with the Telephone Consumer Protection Act ("TCPA") and the Florida Telephone Solicitation Act ("FTSA").

4. Technology Provider further represents and warrants that it will, at all times, comply with all applicable laws and regulations in the performance of its duties under this Agreement. Technology Provider further represents and warrants to MIAMI REALTORS® that the grant of the license to Technology Provider and the fulfillment of Technology Provider's obligations as contemplated under this Agreement are proper and lawful.

5. Technology Provider warrants and represents that is not and shall not be under any restriction or prohibition related to the execution of this Agreement and the performance of its obligations under this Agreement.

C. Participant and Agent's (if applicable) Representations and Warranties.

1. Participant and Agent (if applicable) represent and warrant that their listings within the Licensed Content shall, at all times, comply with all applicable federal, state, and local fair housing, copyright, and disability laws, including but not limited to the Fair Housing Act, the Florida Fair Housing Act, and the Americans with Disabilities Act.

2. Participant and Agent (if applicable) represent and warrant that they qualify for "safe harbor" under the DMCA. This Agreement shall not be construed as legal advice or representation to Participant and Agent (if applicable); however, Participant, Agent (if applicable) warrant and represent that they have registered a designated agent with the USPTO and that their Website has the required DMCA disclosures, reporting and takedown procedures, and the name, address, email, and telephone number of the designated agent registered with the USPTO. If Participant or Agent receives a takedown request pursuant to those procedures, then within twenty-four (24) hours of receipt

Technology Provider must notify MIAMI REALTORS® in writing by forwarding a complete copy of the request to dmca@miamire.com.

3. Participant and Agent (if applicable) represent and warrants that they do, and will at all times, comply with the Telephone Consumer Protection Act (“TCPA”) and the Florida Telephone Solicitation Act (“FTSA”).

4. Participant and Agent (if applicable) represent and warrant that they will, at all times, comply with all applicable laws and regulations in the performance of their respective duties under this Agreement.

D. Indemnification.

1. Participant, Technology Provider, and Agent’s (if applicable) Indemnification of MIAMI REALTORS®. Participant, Technology Provider, and Agent (if applicable) indemnify and hold harmless MIAMI REALTORS®, its officers, directors, employees, agents, contractors, and licensees, from and against any and all claims, demands, liabilities, and actions, the payment of all legal expenses, including but not limited to costs and reasonable attorneys’ fees, arising out of or connected with this Agreement (“Claims”). This includes, but is not limited to: any third-party Claims; any Claims related to breaches by Participant, Technology Provider, and/or Agent (if applicable) of any of the terms and conditions of this Agreement; any breaches by Participant, Technology Provider, and/or Agent (if applicable) of representation or warranty set forth in this Agreement; copyright infringement; federal, state, or local fair housing violations; violation of the Americans with Disabilities Act, or any other legal theory as it relates to the accessibility (or lack thereof) of the Website; any Claims related to violations of the TCPA and/or FTSA; and/or, the use and display of the Licensed Content and MLS Data. MIAMI REALTORS® shall have the sole right to control its own defense and engage legal counsel acceptable to MIAMI REALTORS®.

2. Technology Provider’s Indemnification of Participant and Agent (if applicable). Technology Provider shall indemnify and hold harmless Participant, which is defined in this Agreement as the Brokerage and the Designated REALTOR®/Broker, the Participant's officers, directors, employees, agents, contractors, and licensees, and the Agent (if applicable) from and against any and all claims, demands, liabilities, and actions, the payment of all legal expenses, including but not limited to costs and reasonable attorneys’ fees, arising out of or connected with this Agreement (“Claims”) related to fair housing violations related to accessibility of the Website, violations of the Americans with Disabilities Act, or any other legal theory as it relates to the accessibility (or alleged lack thereof) of the Website. Participant and/or Agent (if applicable) shall have the sole right to control their defense and to engage legal counsel acceptable to Participant and/or Agent (if applicable), respectively, at Technology Provider’s sole expense.

E. Limitation of Liability. TO THE FULLEST EXTENT AVAILABLE UNDER APPLICABLE LAW, MIAMI REALTORS®’ ENTIRE AND CUMULATIVE LIABILITY TO PARTICIPANT, BROKERAGE, DESIGNATED REALTOR®/ BROKER, AGENT (IF APPLICABLE), AND/OR TECHNOLOGY PROVIDER, OR ANY THIRD-PARTY, FOR ANY LOSS OR DAMAGES RESULTING FROM ANY CLAIMS, DEMANDS, OR ACTIONS ARISING OUT OF OR RELATING TO THIS AGREEMENT, OR THE USE OR DISPLAY OF THE LICENSED CONTENT, INCLUDING ANY TORT, SUCH AS NEGLIGENCE, SHALL NOT EXCEED AN AMOUNT EQUAL TO THE FEES PAID TO MIAMI REALTORS® UNDER THIS AGREEMENT DURING THE ONE (1) YEAR PERIOD IMMEDIATELY PRECEDING THE DATE ON WHICH THE CLAIM ACCRUED. WITHOUT WAIVER OF THE LIMITATIONS SET FORTH IN THIS AGREEMENT, IN NO EVENT SHALL MIAMI REALTORS® BE LIABLE FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, PUNITIVE, OR EXEMPLARY DAMAGES OR LOST PROFITS, EVEN IF PARTICIPANT, BROKERAGE, DESIGNATED REALTOR®/BROKER, AGENT (IF

APPLICABLE), AND/OR TECHNOLOGY PROVIDER HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. PARTICIPANT, BROKERAGE, DESIGNATED REALTOR®/BROKER, AGENT (IF APPLICABLE), AND TECHNOLOGY PROVIDER HAVE BEEN ADVISED OF THE RISK OF CLAIMS, LAWSUITS, AND DEMANDS BASED ON ALLEGED COPYRIGHT VIOLATIONS AND FAIR HOUSING VIOLATIONS BASED ON LISTINGS THAT DO NOT BELONG TO THE PARTICIPANT OR AGENT (IF APPLICABLE), EVEN THOUGH THEY APPEAR IN THE LICENSED CONTENT.

VIII. REMEDIES

A. Remedies available to MIAMI REALTORS®. The Parties all agree that a breach of this Agreement will result in immediate and irreparable injury and harm to MIAMI REALTORS®. In such event, MIAMI REALTORS® shall have the right to immediately terminate or suspend Technology Provider's access to the Licensed Content and to obtain an injunction, specific performance, and/or other legal or equitable relief to prevent the violation of the obligation under this Agreement; provided, however, that this shall in no way limit any other remedies which MIAMI REALTORS® may have including, without limitation, the right to seek monetary damages, which may include, without limitation, direct, indirect, incidental, consequential, special, punitive, and/or exemplary damages.

B. Costs of Litigation. If any action is brought by any party to this Agreement against another party regarding the subject matter of this Agreement, the prevailing party shall be entitled to recover, in addition to any other relief granted, costs, reasonable attorneys' fees, and expenses of litigation.

C. Waiver of Jury Trial. Each Party irrevocably and unconditionally waives, to the fullest extent permitted by applicable law, any right it may have to a trial by jury in any legal action, proceeding, cause of action or counterclaim arising out of or relating to this Agreement, including any exhibits, schedules, and appendices attached to this agreement, or the transactions contemplated hereby. Each Party certifies and acknowledges that: (1) no representative of the other Party has represented, expressly or otherwise, that the other Party would not seek to enforce the foregoing waiver in the event of a legal action; (2) it has considered the implications of this waiver; (c) it makes this waiver knowingly and voluntarily; and, (3) it has decided to enter into this Agreement in consideration of, among other things, the mutual waivers and certifications in this Section.

D. Fines. In addition to the other rights and remedies available to MIAMI REALTORS® in this Agreement for any breach by the Participant, Brokerage, Designated REALTOR®/Broker, Agent (if applicable), and/or Technology Provider, they shall be jointly and severally liable for the following fines (collectively, "Fines"), which are posted and updated in a Fine Schedule on www.miamirealtors.com/mls: (1) fines for use of the Licensed Content for any purpose not authorized in this Agreement; (2) daily fines for Technology Provider's failure to provide MIAMI REALTORS® with complete Quarterly Reports as required by this Agreement; and, (3) any other lump sum or periodic fines as outlined in the MLS Rules. All Fines are cumulative. If Fines remain unpaid for ten (10) days past when they are assessed, it will be a material breach of this Agreement shall result in the suspension of the Data Feed until the Participant, Brokerage, Designated REALTOR®/Broker, Agent (if applicable), and/or Technology Provider both pays the outstanding Fines and cures the breach(es) of this Agreement.

IX. GENERAL PROVISIONS

A. Dispute Resolution; Governing Law; Jurisdiction; Venue. For any disputes arising under this Agreement the Parties shall first attempt to resolve such dispute informally. If the Parties are unable to resolve such dispute informally, they may voluntarily submit to non-binding, confidential mediation to be held in Miami-Dade County, Florida. Should the Parties avail themselves of a mediation, the

Parties shall equally share the cost of a mediator, which shall be chosen by mutual agreement. If the Parties are unable to unanimously agree on a mediator, then MIAMI REALTORS® shall choose the mediator in its sole and absolute discretion. If the Parties are unable to resolve such dispute informally or through a voluntary mediation, the Parties shall exclusively submit to the jurisdiction and venue of any court of competent jurisdiction in Miami-Dade County, Florida, on a single plaintiff basis (the Parties waive any right to pursue claims on behalf of, or in conjunction with, a class of plaintiffs). The Parties waive any objection based on improper venue or forum non conveniens. This Agreement is to be construed pursuant to the laws of the State of Florida, without regard to conflict of law provisions.

B. Notices to MIAMI REALTORS®. All notices required to be given under the terms of this Agreement to MIAMI REALTORS® shall be in writing, sent to MIAMI REALTORS®, Attn.: Legal Department, 1800 Oakwood Drive, Miami, FL 33166. Notice shall be given by: (1) personal delivery; (2) certified mail, return receipt requested; or, (3) reputable overnight or two-day courier, and shall be effective upon receipt. A copy of all notices must also be sent via email to legal@miamire.com and MLSIDX@miamire.com.

C. Notices to Participant, Designated REALTOR®/Broker, Technology Provider, and Agent (if applicable). Participant, Designated REALTOR®/Broker, Technology Provider, and Agent (if applicable) all consent to receiving electronic communications (including, but not limited to email, text message, website, or mobile application) on all subjects pertaining to this Agreement, which will satisfy all notice requirements of this Agreement.

D. No Joint Venture. Nothing in this Agreement shall be construed as creating a partnership, joint venture, or principal/agent relationship between the Parties. No Party shall have the right or authority to act for or assume, create, or incur any obligation or liability of any kind, whether express or implied, against, in the name of, or on behalf of another Party. Each Party shall be fully independent in its business operations and shall make all business decisions and practices independently and unilaterally.

E. Severability; Interpretation. If any particular section of this Agreement shall be adjudicated by a court of competent jurisdiction to be invalid, prohibited, or unenforceable for any reason, such section, as to such jurisdiction only, shall be ineffective, without invalidating the remaining provisions of this Agreement, without affecting the validity or enforceability of this Agreement, and without affecting the validity or enforceability of such provision in any other jurisdiction. Any provision or section found to be invalid shall be more narrowly construed so that it becomes legal and enforceable. The headings used in this document are for ease of reference only and shall not in any way be construed to limit or alter the meaning of any section. Any rule that ambiguities are construed or interpreted against the drafter of a document, or against the party for whose benefit the document is made, shall not apply. As used in this Agreement, the plural shall include the singular and the singular shall include the plural whenever appropriate.

F. No Waiver. The waiver by a Party of or the failure of a Party to take action with respect to any breach of any term, covenant, or condition herein contained shall not be deemed to be a waiver of such term, covenant, or condition, or subsequent breach of the same, or any other term, covenant or condition contained in this Agreement.

G. No Assignment. Participant, Technology Provider, nor Agent (if applicable) may assign or otherwise transfer any rights under this Agreement to any party without the prior written consent of the MIAMI REALTORS®.

H. Survival. The obligations of Participant, Technology Provider, and/or Agent (if applicable) set forth under this Agreement shall survive the termination of this Agreement.

I. Execution and Amendment. This Agreement may be executed in one or more counterparts, each of which when so executed and delivered shall be an original and all of which together shall constitute one and the same instrument. Electronically submitted signatures are deemed to be equivalent to original signatures for the purposes of this Agreement. MIAMI REALTORS® shall be deemed to have executed this Agreement upon the last date all Parties have executed this Agreement. With the exception of the Rules as set forth in Section II.F.(a)-(h) of this Agreement, and any notices or schedules (including, but not limited to the Fines and Fees) as MIAMI REALTORS® posts on www.miamirealtors.com/mls, this Agreement may not be amended except in writing signed by Participant, Technology Provider, Agent (if applicable), and MIAMI REALTORS®.

J. Certification by Designated REALTOR®/Broker and Agent (if applicable). By executing this Agreement, Participant, Technology Provider, and/or Agent (if applicable) have read, understand, and agree to all the requirements that are set forth herein and will comply with all of the Rules, as defined herein. Participant, Technology Provider, and Agent (if applicable) further understand that if they fail to comply with any requests by MIAMI REALTORS®, their Data Feed will be shut off without advance notification. The Designated REALTOR®/ Broker for the Brokerage certifies that they are a participant in the Multiple Listing Service (MLS) of MIAMI REALTORS®, a member in good standing with MIAMI REALTORS®, that they hold a current valid real estate license in the State of Florida, and that they offer or accept compensation to and from other MIAMI MLS participants. If the Technology Provider herein is being authorized for an Agent, the Designated REALTOR®/Broker certifies that the Agent is licensed under their Brokerage, is a member in good standing of MIAMI REALTORS®, a subscriber or participant of the MIAMI MLS, and holds a current valid real estate license in the State of Florida. The Designated REALTOR® Broker assures MIAMI REALTORS® that neither the Technology Provider, Brokerage, nor the Brokerage will show, give, sell, loan, scrape, or in any format use or authorize any use of the Licensed Content for any reason other than specified in this Agreement, which is to place the Licensed Content on one (1) single Website, specifically named in this Agreement, pursuant to the terms and conditions of this Agreement. Additional website(s) and subdomains thereof shall incur additional Fees for which the Participant and Agent (if applicable) are jointly and severally liable. Any misuse of the information by and/or the result of the Data Feed will constitute a material breach of this Agreement and the loss of the Designated REALTOR®/Broker, Brokerage, and Agent's (if applicable) privilege to utilize a Data Feed for their Website. The Designated REALTOR®/Broker authorizes and will be responsible for the Technology Provider listed below who has been retained to accept the Data Feed from MIAMI REALTORS® for the sole purpose of operating a Website on their behalf, or on behalf of the Agent (if applicable). The Designated REALTOR®/Broker, by executing this Agreement, is certifying that they have read this Agreement, understand it, and agree to comply with all aspects of this Agreement. The Designated REALTOR®/Broker also understands that they are authorizing the Agent (if applicable) listed herein to operate a Website and accept joint responsibility for the same.

IN WITNESS WHEREOF, the Parties hereto have executed this Agreement by their authorized representatives as of the Effective Date, which is the date when Technology Provider, Participant, Agent (if applicable), and MIAMI REALTORS® have all executed this Agreement.

MIAMI ASSOCIATION OF REALTORS®, INC.

Printed Name: Teresa King Kinney, Chief Executive Officer
Address: 1800 Oakwood Drive, Miami, FL 33166
Telephone: (305) 468-7000
Email: tkinney@miamire.com
With copies to: legal@miamire.com and MLSIDX@miamire.com

SCHEDULE A

Licensing Rules and Regulations for Technology Provider

1. Participant's Technology Provider must protect the Licensed Content and MLS Data from misappropriation by employing reasonable efforts to monitor for and prevent "scraping" or other unauthorized accessing, reproduction, or use of the Licensed Content, MLS Data, MLS System, and/or MLS Server.

2. Technology Provider, Participant, Provider, and Agent (if applicable) may not utilize the MLS Data or Licensed Content in any manner to initiate contact with MIAMI MLS participants or members of the MIAMI REALTORS®, individually or collectively, for any purpose, including but not limited to marketing and/or recruiting purposes.

3. No Technology Provider shall display listing or property address of any seller who has affirmatively directed its listing broker to withhold its listing or property address from display on the Internet. The listing broker or agent shall communicate to MIAMI REALTORS® that a seller has elected not to permit display of the listing or property address on the Internet. Notwithstanding the foregoing, a Participant who operates a Website may provide to consumers via other delivery mechanisms, such as email, fax, or otherwise, the listing or property address of a seller who has determined not to have the listing or address for its property displayed on the Internet.

4. A Participant who lists a property for a seller who has elected not to have the property listing or the property address displayed on the Internet shall cause the seller to execute a document that conforms to the MIAMI REALTORS®' then-current policy.

5. Each Technology Provider shall refresh Licensed Content available on the Website not less frequently than every twenty-four hours (24) hours.

6. Except as specifically authorized in the Agreement, no portion of the Licensed Content or MLS Data may be distributed, provided, or made accessible to any person or entity.

7. A Designated REALTOR®/Broker and Agent (if applicable) who intend to operate a Website must: notify MIAMI REALTORS® in writing of its intention to establish a Website; provide the specific URLs and any subdomains to MIAMI REALTORS® in Schedule "B" of this Agreement; and, must make the Website readily accessible to MIAMI REALTORS® for purposes of verifying compliance with the Agreement and any other applicable Rules and federal, state, and/or local laws.

8. Designated REALTOR®/Broker and/or Agent (if applicable) may operate more than one website itself, through a Technology Provider, or in conjunction with a Technology Provider, subject to the terms of this Agreement.

9. All Websites must clearly display the following statement for listings that are not contracted with the Designated REALTOR®/Broker's Brokerage: "This listing is courtesy of *name of real estate firm."* This Brokerage or real estate firm attribution must be in the average size font being used on each listing (and not smaller than the median typeface used in the displace of Licensed Content), must be in a readily visible color, and in a reasonably prominent location. Also, the Technology Provider must display the additional field listing attribution field(s) (office telephone number, office email address, listing agent telephone number, and/or listing agent email address) if selected by the Designated REALTOR®/Broker's Brokerage.

10. All Websites must clearly contain the following copyright information and disclaimers: "Copyright Southeast Florida Multiple Listing Service © YYYY" or "Copyright SEFMLS © YYYY". Accuracy of listing information is not guaranteed. Listing information is provided for personal consumer, non-commercial use, solely to identify potential properties for potential purchase. All other use is strictly prohibited, is a violation of the terms of use, and may violate federal and state law."

11. All future amendments to this Schedule "A" shall be on www.miamirealtors.com/mls; in the event that any future amendments conflict with this Schedule "A," then the future amendments shall govern. Technology Provider, Participant, and Agent (if applicable) are responsible for staying informed of the latest version of this

Schedule "A," agree to receive notice of any amendments by MIAMI REALTORS® posting the same to www.miamirealtors.com/mls, and by using the VOW, agree to be bound by this Agreement, Schedule "A," and any amendments to the same.

SCHEDULE B

Fees and Payment Terms

The Fees include, but are not limited to, the costs of staffing and administering the process to develop, create, and manage the MIAMI REALTORS®' IDX and VOW program. All Fees are nonrefundable, flat fees based on the pricing tiers in this Schedule "B" and as posted on www.miamirealtors.com/idx and www.miamirealtors.com/mls for future Subsequent Terms(s).

1. WEBSITE DOMAIN. INSTRUCTIONS: Participant, Agent (if applicable), and Technology Provider are to list the Website for which they are requesting the Data Feed. **This is the ONLY Website authorized to receive the Data Feed.**

WEBSITE DOMAIN: _____

2. WEBSITE SUBDOMAIN(S). Participant and Technology Provider are to list the website(s), if any, that are subdomains of the Website that will receive the Data Feed. At this time, MIAMI REALTORS® is not charging Participant, Technology Provider, and/or Agent (if applicable) for subdomains; but, reserves the right to do so in the future and reserves the right to reject, in its sole discretion, any subdomains for which the Data Feed may be used. Failure to disclose the subdomains is a material breach of this Agreement and may result in suspension of the Data Feed. Subdomains must not pertain or belong to real estate licensees who are not named in this Agreement, but who otherwise belong to Designated REALTOR®/Broker's Brokerage. Real estate licensees who are not members in good standing with MIAMI REALTORS® are not eligible for a Data Feed.
NOTE: If there are more than ten (10) subdomains, please contact MLSIDX@miamire.com for assistance.

3. QUARTERLY REPORTS. Within ten (10) calendar days of the end of each quarter (*e.g.* by April 10, July 10, October 10, and January 10 of each year), Technology Provider shall provide MIAMI REALTORS® with a written report that contains, at a minimum, the following information: websites, subdomains, IP addresses, etc. (the "Quarterly Reports"). Technology Provider is required to use the then-current form of and the instructions for the Quarterly Reports posted on www.miamirealtors.com/idx and/or www.miamirealtors.com/mls. MIAMI REALTORS® reserves the right to require Technology Provider to provide these Quarterly Reports in a predetermined format (web-based form, Excel spreadsheet, etc.). Technology Provider's failure to provide these Quarterly Reports is a material breach of this Agreement and shall result in the suspension of the Data Feed until Technology Provider complies with its reporting requirements.

4. BILLING PERIOD FOR INITIAL TERM. In the Initial Term, the Fees will be prorated by quarter (January – March; April – June; July – September; and, October – December) for the remainder of the calendar year (January 1 – December 31). For example, if the Agreement's Effective Date is February 15, then the Fees due and payable will be prorated for the remaining three quarters of the calendar year (April – December).

5. FEES FOR INITIAL TERM: Fees for the Initial Term are as outlined on the then-current Fee Schedule posted on www.miamirealtors.com/idx, and are due and payable within one (1)

business day of the Parties fully executing this Agreement.

6. BILLING PERIOD(S) FOR SUBSEQUENT TERM(S). January 1 – December 31 of each calendar year. Participant and Technology Provider will be notified, in writing, on or about January 1 of each calendar year of the bills that are due for the then-current Term. Payment is due for each Term by January 31; otherwise, the Agreement will be terminated. All future bills due for Subsequent Terms(s) are incorporated herein by reference.

7. PRICING CATEGORIES. Pricing is based on three categories, depending on the Data Feed: IDX, IDX PLUS, Broker Back Office Feed, Brokerage Only Data – PDAP, and/or VOW.

8. INITIAL TERM PRICING TIERS. Tiered pricing for a Data Feed is based on the number of Technology Provider's clients for each Pricing Category in the Initial Term, Fees are as outlined in then-current Fee Schedule posted on www.miamirealtors.com/idx. For a Broker Back Office Data Feed, Designated REALTOR®/Broker and Agent (if applicable) are allowed one (1) free Data Feed for their own use; however, they must provide MIAMI REALTORS® with their Website URL and IP address and they must comply with the terms and conditions of this Agreement. Should MIAMI REALTORS® discover that the Data Feed was shared, given, distributed, or otherwise provide to a third-party that is not part of that Designated REALTOR®/Broker or Agent's (if applicable) office staff, it is a material breach of this Agreement and MIAMI REALTORS® may suspend the Data Feed without advance notice. Should Designated REALTOR®/Broker or Agent (if applicable) desire additional Data Feed(s) for Broker Back Office feed, each shall cost $1,000.00.

9. PRICING POLICY & PRICE INCREASES. The Pricing Tiers in this Agreement are valid for the Initial Term of the Agreement. In any Subsequent Term(s), MIAMI REALTORS® reserves the sole right to increase the amount of Fees after written notice to the Parties to this Agreement. All changes to the Fees for Subsequent Term(s) will be posted on www.miamirealtors.com/idx and/or www.miamirealtors.com/mls. In the Initial Term, the Data Fees will be prorated by quarter for the remainder of the calendar year (January 1 – December 31). In Subsequent Term(s), the billing for a calendar year will be issued in January of the then-current Term. Fees are due in their entirety, in advance for the calendar year in which they are due (*e.g.* by January 31). THERE ARE NO REFUNDS OR CREDITS OF ANY KIND, PRORATED OR OTHERWISE. The pricing for the Initial Term or any Subsequent Term(s) is tied to the number of users; should the number of Technology Provider's clients increase to another Pricing Tier during any given quarter, the Participant and Technology Provider shall be charged for the difference between their current Pricing Tier and the new Pricing Tier, prorated for the remainder of the quarters left in the calendar year. There will be no refunds, adjustments, or reductions in pricing if the number of users decreases, with the exception of when annual bills are generated and sent; at that point, the billing and pricing will be based on the current pricing tier, which is based on the total number of clients receiving the Data Feed.

10. PAYMENT TERMS. All payments shall be made payable to either Bridge Interactive™ or Trestle (CoreLogic), who then remits payment to the MIAMI REALTORS®. Participant and Technology Provider are jointly and severally liable for the payment of the Fees. If the Fees, or Fines, remain unpaid ten (10) calendar days after their due date, then MIAMI REALTORS® may suspend the Data Feed until all overdue Fees are paid in full, in addition to availing itself of any remedies available to MIAMI REALTORS® set forth in the Agreement.

11. CURRENCY. All payments and Fees due under this Agreement are due in U.S. Dollars.

12. TAXES. Participant, Technology Provider, and Agent (if applicable) are responsible for their own taxes, levies, duties, or similar government assessments of any nature, including without

limitation value-added, sales, use, or withholding taxes incurred in connection with this Agreement.

13. SETUP COSTS. Participant, Technology Provider, and Agent (if applicable) shall bear their own hardware, software, technological, telecommunication, procedural, and other costs associated with the fulfillment of its obligations under this Agreement. Should there be any setup costs with the API through Bridge Interactive™ or Trestle, Participant, Technology Provider, and Agent (if applicable) are responsible for managing and making those payments directly to Bridge Interactive™ or Trestle.

14. API. As a condition of this Agreement, and before any Data Feed is activated, Technology Provider shall also execute a separate written agreement with Trestle (Corelogic) and/or Bridge Interactive™. Technology Provider is responsible for all fees under the separate written agreement with Trestle (Corelogic) and/or Bridge Interactive™ to use their respective services; this includes, but is not limited to, setup fees/costs, monthly fees, and charges. Moreover, Technology Provider is responsible for updating their dashboards within Trestle (Corelogic) and Bridge Interactive™ to ensure that the dashboards are reflecting accurate information at all times; failure to do so is a material breach of this Agreement.

15. NO REFUNDS, ADJUSTMENTS, OR CREDITS, PRORATED OR OTHERWISE, WILL BE MADE TO TECHNOLOGY PROVIDER, PARTICIPANT, BROKERAGE, DESIGNATED REALTOR®/BROKER, AND/OR AGENT (IF APPLICABLE).

SCHEDULE C

ADDITIONAL MLS RULES

1. Restrictions. Technology Provider, Participant, and Agent (if applicable) shall comply with the MIAMI MLS Rules applicable to internet display of Licensed Content (the "Rules," as defined in the Agreement). The Rules are regularly updated and posted on MIAMI REALTORS® website at www.miamirealtors.com/mls, and are incorporated herein by reference, including any future updates to the same. It is the Technology Provider, Participant, and Agent's (if applicable) responsibility to stay apprised of and to comply with any updates. In addition, except as otherwise expressly set forth herein, the Licensed Content is provided to Technology Provider, Participant, and Agent (if applicable) for use only as expressly set forth in this Agreement and they will not use the Licensed Content for any other use or purpose.

2. Required Disclaimers. Technology Provider, Participant, and Agent (if applicable) shall display a notice on all Licensed Content displayed indicating that the MLS Data is deemed reliable, but is not guaranteed accurate by MIAMI REALTORS®.

3. Copyright. MIAMI MLS may add watermarks, metadata, tracking materials, notices, or disclaimers to MLS Data or Licensed Content that Technology Provider, Participant, and Agent (if applicable) may not delete, cover, or alter, and each must be reproduced on all copies of Licensed Content. Moreover, Technology Provider, Participant, and Agent (if applicable) must add the following language to all Websites: "Copyright Southeast Florida MLS a/k/a SEFMLS © YYYY. Accuracy of listing information is not guaranteed. Listing information is provided for personal consumer, non-commercial use, solely to identify potential properties for potential purchase. All other use is strictly prohibited and may be a violation of federal and state law."

4. All future amendments to this Schedule "C" shall be on www.miamirealtors.com/mls; in the event that any future amendments conflict with this

Schedule "C," then the future amendments shall govern. Technology Provider, Participant, and Agent (if applicable) are responsible for staying informed of the latest version of this Schedule "C," agree to receive notice of any amendments by MIAMI REALTORS® posting the same to www.miamirealtors.com/mls, and by using the Data Feed, agree to be bound by this Agreement, Schedule "C," and any amendments to the same.

SCHEDULE D

Licensing Rules and Regulations for VOW

1. All future amendments to this Schedule "D" shall be on www.miamirealtors.com/mls; in the event that any future amendments conflict with this Schedule "D," then the future amendments shall govern. Technology Provider, Participant, and Agent (if applicable) are responsible for staying informed of the latest version of this Schedule "D," agree to receive notice of any amendments by MIAMI REALTORS® posting the same to www.miamirealtors.com/mls, and by using the Data Feed, agree to be bound by this Agreement, Schedule "D," and any amendments to the same.

2. Participant may provide brokerage services via a VOW, which may include making Licensed Content available only to consumers with whom the Participant has first established a lawful consumer-broker relationship, including completion of all actions required by Florida law in connection with providing real estate brokerage services to clients and customers (hereinafter "Registrant(s)"). Such actions shall include, but are not limited to, satisfying all applicable agencies, non-agency, and other disclosure obligations, and execution of any required agreement(s).

3. Participant's VOW must obtain the identity of each Registrant and obtain each Registrant's written agreement to the Terms of Use of the VOW, which are as follows:

a. A Registrant must provide his/her/their name and a valid email address. The Participant must send an email to the address provided by the Registrant confirming that the Registrant has agreed to the Terms of Use (described in Section 2.c. below). The Registrant may be permitted to access the VOW only after the Participant has verified that the email address provided is valid and that Registrant received the Terms of Use confirmation.

b. The Registrant must supply a username and a password, the combination of which must be different from those of all other Registrants on the VOW, before being permitted to search and retrieve information from the MLS database via the VOW. The username and password, both of which must be a minimum of six (6) alphanumeric characters in length, may be established by the Registrant or may be supplied by the Participant, at the option of the Participant. An email address may be associated with only one username and password. The Registrant's password and access must expire on a date certain, in thirty (30) day intervals, but may be renewed. The Participant must, at all times, maintain a record of the name and email address supplied by the Registrant, and the username and current password of each Registrant.

i. Such records must be kept for not less than one hundred eighty (180) days after the expiration of the validity of the Registrant's password.

ii. MIAMI REALTORS® reserves the right to audit Participant, Designated REALTOR®/Broker, Technology Provider, and/or Agent (if applicable) to ensure

compliance with this Agreement. In addition, if MIAMI REALTORS® has reason to believe that a Participant's VOW has caused or permitted a breach in the security of the data or a violation of the Rules or this Agreement related to use by one or more Registrants, the Participant shall, upon request, provide to MIAMI REALTORS® a copy of the record of the name, email address, user name, current password, and audit trail, if required, of any Registrant identified by MIAMI REALTORS® to be suspected of involvement in the violation.

c. The Registrant must be required affirmatively to express agreement to a "Terms of Use" provision that requires the Registrant to open and review a written agreement that provides at least the following:

i. That the Registrant acknowledges entering into a lawful consumer-broker relationship with the Participant;

ii. That all data obtained from the VOW is intended only for the Registrant's personal, non-commercial use;

iii. That the Registrant has a bona fide interest in the purchase, sale, or lease of real estate of the type being offered through the VOW;

iv. That the Registrant will not copy, redistribute, or retransmit any of the data or information provided, except in connection with the Registrant's consideration of the purchase or sale of an individual property;

v. That the Registrant acknowledges MIAMI REALTORS®' ownership of, and the validity of MIAMI REALTORS®' copyright in, the Licensed Content, MLS Data, MLS System, and MLS Server;

vi. After the Registrant has opened for viewing the Terms of Use agreement, a "mouse click" is sufficient to acknowledge agreement to those terms. The Terms of Use Agreement may not impose a financial obligation on the Registrant or create any representation agreement between the Registrant and the Participant;

vii. The Terms of Use agreement shall also expressly authorize MIAMI REALTORS® to access the VOW at any time for the purposes of verifying compliance with the Rules and this Agreement, and to monitor the display of Participants' listings by the VOW; and,

viii. An agreement entered into at any time between the Participant and Registrant imposing a financial obligation on the Registrant or creating representation of the Registrant by the Participant must be established separately from the Terms of Use, must be prominently labeled as such, and may not be accepted solely by mouse click.

4. A Participant's VOW must prominently display an e-mail address, telephone number, or specific identification of another mode of communication (*e.g.*, live chat) by which a consumer can contact the Participant to ask questions, or get more information, about properties displayed on the VOW. The Designated REALTOR®/Broker, or a non-principal broker or sales licensee licensed with the Brokerage who is a member in good standing with MIAMI REALTORS®, must be willing and able to respond knowledgeably to inquiries from Registrants about properties within the market area served by that Participant and displayed on the VOW.

5. A Participant's VOW must protect the License Content and MLS Data from misappropriation by employing reasonable efforts to monitor for and prevent "scraping" or other unauthorized accessing, reproduction, or use of the Licensed Content, MLS Data, MLS System, and/or MLS Server.

6. A Participant's VOW must comply with the following additional requirements:

a. No VOW shall display listing or property address of any seller who has affirmatively directed its listing broker to withhold its listing or property address from display on the Internet. The listing broker or agent shall communicate to MIAMI REALTORS® that a seller has elected not to permit display of the listing or property address on the Internet. Notwithstanding the foregoing, a Participant who operates a VOW may provide to consumers via other delivery mechanisms, such as email, fax, or otherwise, the listing or property address of a seller who has determined not to have the listing or address for its property displayed on the Internet.

b. A Participant's VOW may not make available for search by or display to Registrant(s) any of the following Licensed Content or MLS Data, which is intended exclusively for other MIAMI MLS participants and their affiliated licensees: **(i)** expired and withdrawn listings; **(ii)** the type of listing agreement (e.g. exclusive right-to-sell or exclusive agency); **(iii)** the seller's and occupant's name(s), telephone number(s), or email address(es); or, **(iv)** instructions or remarks intended for cooperating brokers only, such as those regarding showing or security of the listed property.

c. A Participant who lists a property for a seller who has elected not to have the property listing or the property address displayed on the Internet shall cause the seller to execute a document that conforms to the VOW policy. The Participant shall retain such forms for at least one (1) year from the date they are signed.

d. All Websites must clearly display the following statement for listings that are not contracted with the Designated REALTOR®/Broker's Brokerage: "This listing is courtesy of *name of real estate firm."* This Brokerage or real estate firm attribution must be in the average size font being used on each listing (and not smaller than the median typeface used in the displace of Licensed Content), must be in a readily visible color, and in a reasonably prominent location. Also, the Technology Provider must display the additional field listing attribution field(s) (office telephone number, office email address, listing agent telephone number, and/or listing agent email address) if selected by the Designated REALTOR®/Broker's Brokerage.

e. With respect to any VOW that: **(i)** allows third-parties to write comments or reviews about particular listings or displays a hyperlink to such comments or reviews in immediate conjunction with particular listings; or, **(ii)** displays an automated estimate of the market value of the listing (or hyperlink to such estimate) in immediate conjunction with the listing, the VOW shall disable or discontinue either or both of those features as to the seller's listing at the request of the seller. The listing broker or agent shall communicate to MIAMI REALTORS® that the seller has elected to have one or both of these features disabled or discontinued on all Participant's websites. Except for the foregoing and subject to Section 5.d., a Participant's VOW may communicate the Participant's professional judgment concerning any listing. Nothing shall prevent a VOW from notifying its customers that a particular feature has been disabled "at the request of the seller."

f. A VOW shall maintain a means (*e.g.*, e-mail address, telephone number) to receive comments about the accuracy of any data or information that is added by or on behalf of the VOW operator beyond that supplied by MIAMI REALTORS® and that relates to a specific property displayed on the VOW. The VOW operator shall correct or remove any false data or information relating to a specific property upon receipt of a communication from the listing broker or listing agent for that

property explaining why the data or information is false. However, the VOW operator shall not be obligated to remove or correct any data or information that simply reflects good faith opinion, advice, or professional judgment.

g. Each VOW shall refresh Licensed Content available on the VOW not less frequently than every twenty-four (24) hours.

h. Except as specifically provided for in this Schedule "D" and in this Agreement, no portion of the Licensed Content or MLS Data may be distributed, provided, or made accessible to any person or entity.

i. Every VOW must display a privacy Policy that informs Registrants of the ways in which information obtained from them will be used.

j. A VOW may exclude listings from display based only on objective criteria, including, but not limited to, factors such as geography, list price, type of property, or whether the listing broker is a REALTOR®.

7. A Participant who intends to operate a VOW must notify MIAMI REALTORS® of its intention to establish a VOW and must make the VOW readily accessible to MIAMI REALTORS® for purposes of verifying compliance with this Agreement and any other applicable Rules and/or federal, state, and local laws.

8. A Participant may operate more than one VOW itself or through an AVP ("Affiliated VOW Partner" or "AVP"). An AVP refers to an entity or person designated by the Participant to operate a VOW on behalf of the Participant, subject to the Participant's supervision, accountability, and compliance with this Agreement. No AVP has independent participation or membership in the MIAMI MLS or MIAMI REALTORS® by virtue of the AVP's right to receive information on behalf of Participant. No AVP has the right to use the Licensed Content, MLS Data, or MLS System, except in connection with the operation of a VOW on behalf of the Participant and in compliance with this Agreement. Access by an AVP to Licensed Content, MLS Data, and/or the MLS System is derivative of the rights of the Participant on whose behalf the AVP operates a VOW. A Participant who operates a VOW itself shall not be precluded from also operating VOWs in conjunction with AVPs.

9. A non-principal broker or sales licensee, affiliated with a Participant, may, with the Participant's consent, operate a VOW or have a VOW operated on its behalf by an AVP. Such a VOW is subject to the Participant's oversight, supervision and accountability, terms of the VOW Policy, and MLS Rules.

10. Participant assumes full responsibility and liability for Registrants' use – or misuse – of the VOW, the Licensed Content, MLS Data, and/or MLS System.

Technology Provider, Participant, and Agent (if applicable) shall display a notice on all Licensed Content displayed indicating that the MLS Data is deemed reliable, but is not guaranteed accurate by MIAMI REALTORS®.

Questionnaire: 2023 Member Courtesty Data Feed Questionniare

List the website URL where the data will be displayed for your courtesy IDX feed. If you are not receiving an IDX feed, enter N/A and complete the next question.:

https://www.padmagnet.com

If you are requesting more than one data feed type, list the additional data feed type(s) you are requesting. Each additional data feed type up to 5 is $100 each annually. Each data feed type after 6 and up to 10 is $1000 each annually.:

For each additional data feed type, list the website URL where the data will be displayed. If it is a Back Office data feed, list the product name.: